

MINISTRY OF LABOUR AND EMPLOYMENT

NOTIFICATION

New Delhi, the 29th June, 2026

G.S.R. 525(E).— In exercise of the powers conferred by clause (a) of sub-section (1) of section 15 of the Code on Social Security (36 of 2020) and in supersession of the Employees' Provident Funds Scheme, 1952, except as respects things done or omitted to be done before such supersession, the Central Government, hereby makes the following Scheme, namely.

CHAPTER I

Preliminary

1. Short title, commencement and application.— (1) This Scheme may be called the Employees' Provident Funds Scheme, 2026.

(2) It shall come into force on the date of its publication in the Official Gazette.

(3) Subject to the provisions of sections 20, 21 and 143 of the Code, this Scheme shall apply –

- (i) to every establishment, to which the Chapter III of the Code applies; and
- (ii) to every establishment belonging to or under the control of the Central Government or State Government or set up under any Central Act or State Act or any other law for the time being in force, employing such number of employees as specified in the First Schedule to the Code and whose employees are not entitled to the benefits of contributory provident fund or old age pension in accordance with any scheme or rules framed under that law.

2. Definitions.— (1) In this Scheme, unless the context otherwise requires: —

- (a) “authorised signatory” means an employee of the establishment concerned legally empowered by the employer of an establishment to sign any return or document on behalf of the employer or the establishment, as the case may be and such actions shall be legally binding on the employer as well as the establishment;
- (b) “board of trustee” means the legal entity consisting of the Chairperson and members of the trust constituted under sub- section (5) of section 143 of the Code;
- (c) "child" means the legitimate child and includes adopted child, if the Commissioner is satisfied that adoption of a child is legally recognized under the personal law of the member;
- (d) “Code” means the Code on Social Security, 2020;
- (e) "Commissioner " means a Commissioner for Employees' Provident Fund appointed under section 14 of the Code;
- (f) "Excluded employee" means,-
 - (i) an employee whose wage at the time he is otherwise entitled to become a member of the Fund, exceeds wage ceiling as prescribed under the Code;
 - (ii) in case of an International Worker who, as a citizen or resident of their country of origin, contributes to a social security programme of that country with which India has entered—
 - (A) into a social security agreement on a reciprocity basis, and who enjoys the status of a detached worker for the period and terms specified in such agreement; or